

WORK PERFORMED AFFIDAVIT

(ATTACH TO INVOICE; USE ONLY WHEN WORK WAS FULLY OR PARTIALLY PERFORMED BY THE CONTRACTOR)

Name of Contractor _____

OMO# _____

STATE OF _____ }
SS:
COUNTY OF _____ }

_____, being duly sworn, deposes and says:

1. I certify that I am an authorized representative of the contractor retained by the NYC Department of Housing Preservation and Development ("HPD") to perform emergency repairs ("contractor") for the Open Market Order ("OMO") stated at the top of this page ("subject OMO").
2. The contractor was directed by HPD in the Confirmation of Award for the subject OMO to go to the building located at _____
[enter full address for the OMO] in response to an emergency condition.
3. An original of this affidavit and an invoice with an itemized list of materials and a description of work performed will both be submitted to HPD Fiscal by the contractor for the subject OMO.
4. Work dates provided on the invoice and affidavit submitted by the contractor for the subject OMO will accurately reflect the dates of the start and end of the work. Any payrolls submitted by the contractor for the subject OMO, when required, will also accurately reflect the dates of the work, with start and end dates accurately listed and consistent with those provided in the invoice.

If work was fully performed by the contractor for the subject OMO, fill in item 5 below only.

If work was partially performed by the contractor for the subject OMO fill in item 6 below and if the reason for partial work performed was that the contractor was prevented from completing the work by another person(s), in such event, also fill in item 7 below.

5. I hereby affirm that that the contractor performed ALL work according to the terms of the subject OMO and in accordance with all Federal, State and City laws and regulations. This work was performed beginning on _____ and completed on _____.
6. I hereby affirm that the contractor performed PARTIAL work described in the subject OMO due to

(add information describing the reason for the PARTIAL work) and is entitled to a payment in the amount of \$ _____, a payment commensurate with the partial work performed.

OMO # _____

7. I hereby affirm that the contractor performed PARTIAL work described in the subject OMO due to being prevented from completing the work by an individual(s).

Fill in all information provided by the individual(s) preventing completion of work in items a and b below. If, and only if, the individual(s) preventing completion of work did not provide information for any part of items a and b below, fill in the words "did not provide" where applicable.

Also fill in item c, providing additional details about what action(s) the individual(s) took to prevent the contractor from completing the work.

The individual(s) who prevented the contractor from completing the work.

- a. Stated their name(s) as: _____ and relationship to the building as: _____.
(e.g. a tenant, the owner, owner's employee, managing agent, super, etc...).

- b. Description of individual(s) preventing completion of work

_____.

(e.g. male/female, tall/short, dark/light hair)

- c. The individual(s) who prevented the contractor from completing the work did so by taking the following action(s):

_____.

Please Provide Your Notarized Signature Below, Attesting to the Statement Below.

The Notary Witnessing Your Signature Must Fill in the Info for the Notary Section Below.

Your Notary Must Also Provide its Current, Non-Expired Notary Stamp Near The Notary's Signature.

I affirm that all of the foregoing is true. I understand that any false statement made by myself or the contractor may result in any authorized penalty and consequence to myself and the contractor.

Signature

Type or Print Name

Sworn to me this day of _____, 20____

Notary Public